

HOUSE BILL 1871

By Atchley

AN ACT to amend Tennessee Code Annotated, Section 39-13-210 and Title 40, relative to second degree murder.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-210(c), is amended by adding the following as a new subdivision:

(3) Notwithstanding title 40, chapter 35, a person convicted of a violation of subdivision (a)(1) shall be punished as a Range II offender; however, the sentence imposed upon such person may, if appropriate, be within Range III but in no case shall it be lower than Range II.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.